

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1948

By: Logan of the Senate

and

Fetgatter of the House

COMMITTEE SUBSTITUTE

An Act relating to fireworks; creating the Rocket's Red Glare Act; amending 68 O.S. 2021, Section 1623, which relates to conditions for storage, transportation, sale, and use; updating statutory language; removing certain requirements to sell fireworks within certain time frame; prohibiting counties from restricting certain firework display under certain circumstances; amending 68 O.S. 2021, Section 1624, as amended by Section 1, Chapter 144, O.S.L. 2024 (68 O.S. Supp. 2025, Section 1624), which relates to the distribution of skyrockets; removing the prohibition of certain skyrockets; providing for noncodification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Rocket's Red Glare Act".

1 SECTION 2. AMENDATORY 68 O.S. 2021, Section 1623, is
2 amended to read as follows:

3 Section 1623. A. Consumer ~~Fireworks~~ fireworks may be legally
4 stored, transported, sold, and used in this state with the
5 exceptions and conditions specified under the provisions of Section
6 1621 et seq. of this title and consistent with Section 22-110 of
7 Title 11 of the Oklahoma Statutes. Novelties may be legally stored,
8 transported, sold, and used in this state.

9 B. All fireworks storage and sales areas shall be conspicuously
10 posted with signs reading "FIREWORKS-NO SMOKING".

11 C. Fireworks offered for retail sale ~~must~~ shall be sold
12 according to the National Fire Protection Association (NFPA) 1124
13 Chapter 7, 2006 Edition. Any facility licensed to sell consumer
14 fireworks prior to November 15, 2009, shall be exempt from the NFPA
15 regulations listed in this subsection but shall remain under the
16 regulation of the date of licensure. Mail-order sales to consumers
17 are prohibited through any medium of either interstate or intrastate
18 commerce. Sales of fireworks ~~may only~~ shall be made at properly
19 licensed retail locations within ~~the State of Oklahoma~~ this state.
20 A sales clerk ~~must~~ shall be on duty to serve the consumer at the
21 time of purchase.

22 D. An enclosed building used for sale of fireworks to the
23 public shall be built according to the International Building Code
24

1 (IBC) 2006 Edition ~~and/or~~ or the codes and standards adopted by the
2 Oklahoma Uniform Building Code Commission.

3 E. The retail license holder shall be responsible for the safe
4 operation of retail sales to the public. The retail license holder
5 shall be at least sixteen (16) years of age.

6 F. Fireworks may be sold by licensed manufacturers,
7 distributors, or wholesalers at wholesale or retail and by retailers
8 to residents and nonresidents of the state ~~from January 1 until~~
9 ~~December 31 of each calendar year. Fireworks may only be sold by~~
10 ~~licensed retailers from June 15 until July 6 or the first Sunday~~
11 ~~after July 4th, whichever is later, and from December 15 until~~
12 ~~January 2 to residents and nonresidents of the state each calendar~~
13 ~~year.~~

14 G. Nothing in Section 1621 et seq. of this title shall be
15 construed to require the State Fire Marshal to inspect or cause to
16 be inspected portable retail fireworks stands, tents, or other
17 nonrigid shelters prior to opening; provided, the provisions of this
18 subsection shall not prohibit the local governing authority of the
19 location of the portable retail fireworks stand, tent, or other
20 nonrigid shelter from inspecting such stands, tents, or other
21 nonrigid shelters prior to opening.

22 H. No county shall prohibit a private outdoor consumer
23 fireworks for a noncommercial purpose, provided that:

24 1. Such display is located on private property;

1 2. No county burn ban is in effect as provided for in Section
2 16-26 of Title 2 of the Oklahoma Statutes; and

3 3. There are no red flag fire warnings in effect, meaning:

4 a. no sustained winds greater than twenty (20) miles per
5 hour,

6 b. the relative humidity is above twenty-five percent
7 (25%), and

8 c. the ten-hour dead fuel is above nine percent (9%)
9 moisture.

10 G. Persons lighting fireworks under the conditions listed in
11 paragraph 3 of subsection H of this section shall notify the local
12 responding fire department before lighting any fireworks.

13 SECTION 3. AMENDATORY 68 O.S. 2021, Section 1624, as
14 amended by Section 1, Chapter 144, O.S.L. 2024 (68 O.S. Supp. 2025,
15 Section 1624), is amended to read as follows:

16 ~~A. From and after July 5, 1981, the sale, gift, distribution or~~
17 ~~use of skyrockets with sticks as defined by the United States~~
18 ~~Consumer Product Safety Commission is hereby prohibited within the~~
19 ~~State of Oklahoma. This prohibition shall include, but is not~~
20 ~~limited to, explosive devices commonly known as "bottle rockets" or~~
21 ~~"stick rockets". Distribution, gift or sale from Oklahoma to a~~
22 ~~person outside the State of Oklahoma shall not be considered as~~
23 ~~occurring within the State of Oklahoma. The provisions of this~~
24 ~~subsection shall not apply to the sale of skyrockets with sticks by~~

~~retail and wholesale firework distributors to state-licensed outdoor display operators or the use of skyrockets with sticks in connection with commercial aerial displays performed by state-licensed outdoor display operators.~~

~~B.~~ Any and all items of Consumer Fireworks not properly labeled according to the United States Consumer Product Safety Commission and identified with the appropriate United States Department of Transportation markings is prohibited under the provisions of Section 1621 et seq. of this title.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

60-2-17453 TKR 04/15/26